MAXWELL CHINAMASA
and
TAFADZWA CHINAMASA
versus
PATIENCE SAMBAYI

HIGH COURT OF ZIMBABWE
ZHOU AND CHIKOWERO JJ
HARARE; 5 June and 8 September 2025

Civil Appeal

K Tambanewenyu, for the appellants
No appearance for the respondent

CHIKOWERO J:

[1] This is an appeal from the judgment of the Magistrates Court sitting at Rusape wherein the appellants were ordered to pay damages in the sum of US$ 1353 to the appellant as well as costs of suit. The judgment was delivered on 14 December 2023.

FACTUAL BACKGROUND

[2] The appellants are male adults residing in Mazivisa Village, Chief Makoni in Rusape. The respondent, who is their niece, is a female adult residing in the same village.

[3] On 17 October 2021 the appellants, hammer and axe in hand, destroyed the respondent's three roomed house. That structure, which was under construction, was at window level. What irked them was that the respondent was constructing the house on a piece of land over which they claimed rights of occupation and use.

[4] The respondent promptly lodged a report with the police.

[5] On 17 August 2022 the appellants appeared before the Magistrates Court sitting at Rusape. There both pleaded guilty to a charge of malicious damage to property as defined in s

140 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code"). The charge arose from the facts set out at para 3 of this judgment.

[6] Each appellant was sentenced to 10 months imprisonment of which 2 months imprisonment was suspended for 5 years on condition he does not, during that period, commit any offence involving malicious damage to property and for which upon conviction he is sentenced to a term of imprisonment without the option of a fine. A further 2 months imprisonment was suspended on condition the appellant restituted RTGS$55836 to the respondent on or before 28 February 2023. The remainder of 6 months imprisonment was suspended on condition each appellant completed 210 hours of community service at Chitungwiza Magistrates Court.

[7] Both appellants paid the restitution in full on 23 February 2023.

PROCEEDINGS GIVING RISE TO THIS APPEAL

[8] On or about 26 April 2022 the respondent issued summons with the clerk of Court, Magistrates Court at Rusape wherein she claimed damages against the appellants. The particulars of claim read:

> "(1) Defendants having been found guilty of malicious damage to property RS PP 723/22 post having destroyed my home.
>
> (2) Plaintiff now seeks damages being cost of repairs to the property so destroyed in total of $1479USD.
>
> (3) Defendants to pay damages.
>
> (4) Defendants to pay costs of suit."

[9] Acting through a law firm based in Rusape, the respondents entered an appearance to defend and filed a joint plea. In material part, the latter reads as follows:

> "The 1st and 2nd defendants plead to the plaintiff's claims as follows:
>
> 1. The criminal court ordered that the value of the prejudice as stated in the state outline be paid to the clerk of court, or else the defendants would serve jail time, instead.
> 2. The restitution was fully paid for, as ordered by the court.
> 3. The defendants therefore owe nothing to the plaintiff as the value of the prejudice was fully paid for.
> 4. In the circumstances, defendants pray that the plaintiff's claims be dismissed with costs."

[9] At the trial the respondent testified. She produced various witnesses and exhibits. The appellants were their own witnesses. They did not produce any exhibits. After an assessment of the evidence, the court *a quo* was satisfied that the respondent had proved that the appellants were liable to pay the damages and had established the quantum of such damages. In assessing the quantum of damages, the court *a quo* deducted the restitution paid by the appellants pursuant to the sentence imposed on them in the criminal proceedings. In any event, the appellants did not, *a quo,* take issue with the quantum of the damages. What they disputed, both in the pleadings and throughout the trial, was their liability to pay damages seeing as the civil suit arose from the same set of facts that gave rise to the criminal charge of malicious damage to property. It will be remembered that they pleaded guilty to that charge, were convicted and duly sentenced.

THE APPEAL

[10] The appellants were not legally represented at the trial *a quo*. They were still self-actors at the time that they filed the Notice of Appeal. They also filed heads of argument as self-actors. Their Notice of Appeal reads in relevant part:

> **"GROUNDS OF APPEAL**
>
> The appellants are appealing against the whole judgment by the learned Magistrate on the following grounds:
>
> 1. The court *a quo* erred at law and passed an illegal judgment when it failed to be guided by the laws relevant to compensation and restitution of victims of crime. The learned magistrate presided over a matter which had already been previously decided in terms of s 362 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] and disregarded the principle of *resjudicata* which was operating in favour of the appellants under Rusape Magistrates' Court CRB RSPP 723-4/22.
> 2. The court *a quo* erred and performed a gross miscarriage of justice by ordering the appellants to pay money in United States of America Dollars instead of Zimbabwean Dollars [RTGS] which was in the sum of ZWL 111 672.00 and already been fully settled.
> 3. The court *a quo* erred at law when it presided over a matter which he had previously adjudicated upon and declared that respondent was not sufficiently compensated by virtue of the order that it had previously granted under CRB RS PP 723-4/22 thereby becoming *functus officio* in all future proceedings relating to the same parties over the same factual issues.
>
> RELIEF SOUGHT WHEREFORE Appellants pray for;-
>
> 1. That the appeal succeeds with costs.
> 2. That the judgment of the court *A QUO* handed down by Magistrate Mr Kuhudzai GT sitting at Rusape Magistrates' Court Civil on the 14th December 2023 be and is hereby set aside.
> 3. The 1st and 2nd Appellant should not pay USD1353.00 as amount owed to the Respondent for damages.

4. The and 2nd appellant should not pay cost of suit."

THE APPELLANTS' SUBMISSIONS ON APPEAL

[11] At the hearing of the appeal, Mr Tambanewenyu had assumed agency for the appellants.

[12] Counsel adopted the heads of arguments filed by the appellants. He submitted that the issue of damages had been determined by the Magistrates Court at Rusape during the Criminal proceedings. He argued that an enquiry should have been conducted during the Criminal proceedings into the suitability (by which we understood him to be referring to the quantum) of damages payable. In the absence of such an enquiry the assessment of damages/restitution ordered by the criminal court must be taken to be correct. The restitution was paid. Mr Tambanewenyu submitted that it was a misdirection for the court *a quo* to sit again in a civil hearing to re-hear the issue of compensation. He urged us to allow the appeal, and to set aside the judgment rendered *a quo*. We were also asked to order that the respondent pays the appellants' costs of appeal.

[13] The respondent did not participate in the appeal. No heads of argument were filed on her behalf. She did not appear at the hearing of the appeal.

DISPOSITION

[14] The appeal is without merit.

[15] The sole issue raised in the three grounds of appeal is whether the court a quo was correct in determining a delictual claim for damages arising from the set of facts on which the criminal proceedings were founded.

[16] The answer is found in s 278(2) and (3) of the Criminal Law Code. They read:

> "(2) A conviction or acquittal shall not bar civil or disciplinary proceedings in relation to any conduct constituting the crime at the instance of any person who has suffered loss or injury in consequence of the conduct or at the instance of the relevant disciplinary authority, as the case may be.
>
> (3) Civil or disciplinary proceedings in relation to any conduct that constitutes a crime may without prejudice to the prosecution of any criminal proceedings in respect of the same conduct be instituted at any time before or after the commencement of such criminal proceedings."

[17] Commenting on these provisions, in *Prosecutor-General* v *Intratrek Zimbabwe (Pvt) Ltd and Ors* 2019(3) ZLR 106(S) PATEL JA (as he then was) said at 116-G-H:

> "These provisions make it clear that the concept of double jeopardy does not extend to criminal and civil proceedings which might be instituted in respect of the same conduct or causa. They also make it clear that such criminal and civil proceedings may be instituted at any time, whether before, after or concurrently with one another."

His Lordship cited with approval the sentiments of MUSAKWA J (as he then was) in *S* v *African Consolidated Resources (Pvt) Ltd* 2013 (1) ZLR 392 (H) where, at 393F, the headnote reads:

> "Held, further, that the crucial question was whether a criminal prosecution could be instituted from the same facts giving rise to a civil suit and whether it was impermissible to have a parallel process where the conduct of an accused person gives rise to both criminal prosecution and civil litigation."

The question is answered at 400 E-F where the court said:

> "That out of the same set of facts civil litigation and criminal prosecution has arisen cannot be a ground for excepting to an indictment. By way of analogy, out of the same conduct may arise a criminal charge and disciplinary or misconduct proceedings. The same conduct may further spawn a delictual suit."

See also *Christian Community Life Assurance Private Limited and Ors* v *Prosecutor General and Anor* SC 09/25 at 25-27.

[18] What the criminal court ordered as a condition for suspension of part of the sentence imposed on each appellant was payment of restitution. That is governed by s 358(3) of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. The suspension of part of the sentence on condition that restitution were paid cannot be the same thing as the remedy of damages arising out of the same conduct as the cause of action in the civil suit filed *a quo*.

[19] Neither was the condition of suspension of part of the sentence on condition that restitution were paid a compensation order as envisaged in terms of s 362 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] ("the Act"). Conditions on which a sentence may be suspended are governed by 358(3) of the Act while Part XIV of the Act speaks to compensation orders. These are distinct. See *S* v *Gombarume* 1975(1) RLR 300(G) at 301A-B; *S* v *Chiwoko and Anor* 1989(2) ZLR 364(H) at 365D-F and *S* v *Banana* 2000(1) ZLR 607(S). The appellants at their trial, in grounds of appeal and heads of argument, as did Mr

Tambanewenyu at the hearing of the appeal, made the error of not observing the distinction between a claim for damages in the civil suit on one hand and restitution as a condition for suspension of part of the sentence imposed on the appellants in the criminal proceedings on the other. Further, no distinction was made between the award of damages made by the civil court and what the criminal court did not award - a compensation order.

[20] What was before the court *a quo* was, in our view, a simple property damages claim. The claim was that the appellants had damaged the respondent's house. In practical terms, all she prayed for was the cost of repair. That was the measure of the damages. See The Civil Practice Handbook by Mary Welsh at 15/16. We have already recorded that the quantum of the damages was neither an issue *a quo* nor on appeal.

[21] This also we say. Neither *re judicata* nor *functus officio* could operate to bar the respondent from pursuing her civil claim for damages by reason of the same set of facts having been the basis for the conduct grounding the criminal proceedings. The civil proceedings were not a second criminal prosecution of the appellants based on the same facts which gave rise to the charge of malicious damage to property. *Re judicata* operates in civil law. It is not the same thing as a plea that the appellants had already been convicted of the offence with which they were charged of. Needless to say, as far as the civil proceedings were concerned, the appellants were not being charged with any criminal offence.

COSTS

[22] The respondent, despite her non-participation, has succeeded on appeal. But she has not incurred any costs in the process. Resultantly, it is just that there be no order as to costs of the appeal.

ORDER

IT IS ORDERED THAT:

1. The appeal be and is dismissed.
2. There is no order as to costs.

CHIKOWERO J:……

ZHOU J:…….I agree

Chinamatira Jonasi Nyambira Tambanewenyu, appellants' legal practitioners